

POSH Coverage & Jurisdiction

Module 6 | Quick Reference Guide

Why this guide matters

Coverage and jurisdiction questions often arise before a complaint can be routed correctly. Use this guide after Module 6 to identify who may be covered, whether there is a workplace connection, and which complaint forum may be relevant.

1. Who may be protected under the POSH framework?

The programme emphasises that POSH protection is not limited to permanent employees. Under the Act, the statutory complainant is an aggrieved woman, and coverage can extend across different forms of work and workplace interaction.

- Regular, temporary, ad hoc and daily-wage workers.
- Women engaged for remuneration, on a voluntary basis or otherwise.
- Employees engaged directly or through an agent.
- Contract workers, probationers, trainees and apprentices.
- A woman visiting a workplace in connection with the workplace context.

2. What can count as a workplace?

Workplace is broader than the physical office. The key question is whether the place or interaction arose out of or during employment or has a sufficient work-related connection.

- Office premises, meeting rooms, cafeterias and common areas.
- Work-related travel, conferences, client locations and official events.
- Employer-provided transportation or work-related travel arrangements.
- Team outings and other activities connected with work.
- Work-from-home and virtual meetings.
- Work-related email, messaging, social-media or other digital interactions.

Trainer reminder

Do not decide jurisdiction only by asking, "Was it inside the office?" An off-site, after-hours or digital interaction may still require a workplace-nexus assessment.

3. Which complaint forum may be relevant?

Situation	Forum indicated in the programme
Workplace with 10 or more employees	Internal Committee (IC)
Workplace with fewer than 10 employees	Local Committee (LC)
Complaint against the employer	Local Committee (LC)

4. A simple jurisdiction lens

Question to Ask	What to Check	Likely Direction
Who is involved?	Status of the aggrieved woman and respondent; relationship to work.	Confirm whether the POSH framework may apply.
Where / how did it happen?	Office, travel, transport, client site, event, WFH or work-related digital interaction.	Assess whether there is a workplace nexus.
How many employees?	Whether the workplace has 10 or more employees.	10+ employees: IC; fewer than 10: LC.
Is the complaint against the employer?	Identity and role of the respondent.	Complaint against employer: LC.
Are facts incomplete?	Location, employment link, organisation size, reporting structure or digital context.	Do not guess; seek the missing information.

5. What a POSH trainer should reinforce

- Coverage and forum should be identified from the facts, not assumptions.
- An interaction occurring after working hours is not automatically outside the workplace context.
- A virtual or digital interaction can still have a work-related nexus.
- Not every uncomfortable workplace interaction is necessarily sexual harassment; other organisational policies may also be relevant.
- Where important facts are missing, the responsible answer is to seek more information before concluding.

Quick decision path

Person covered? → Workplace nexus? → Organisation size / respondent role? → Appropriate forum → Verify missing facts before advising.